

EXAMPLE

Title IX/Conduct Memorandum of Understanding

This is an example of what an MOU with Title IX/Conduct offices could include, but ultimately, it should reflect your program's approach to communication and collaboration. We have provided sample text that can be modified or edited to fit your program's needs.

In order to ensure the continued safety of all campus community members and that students are receiving the appropriate support from [INSERT PROGRAM NAME] at [COLLEGE/UNIVERSITY NAME], the following provisions are agreed upon. It is the intent of the parties that the Memorandum of Understanding has a term of [INSERT TERM LIMIT], unless terminated by either party with 60 days written notice.

Parties:

[INSERT TITLE IX/CONDUCT OFFICE NAME, ADDRESS, MAIN POINT OF CONTACT]
Hereafter referred to as "Conduct Office."

[INSERT PROGRAM NAME, ADDRESS, MAIN POINT OF CONTACT]
Hereafter referred to as "the Program."

Goal: The overarching goal of this Memorandum of Understanding is to ensure that the procedures for reporting and navigating the conduct process, as well as accessing resources via the Conduct Office, are accessible to students enrolled in the Program. This allows all students to understand the rules, regulations, and policies that keep all campus members safe and informed while enrolled at [INSERT COLLEGE/UNIVERSITY NAME].

It is hereby agreed upon that:

[CLEARLY OUTLINE THE ROLES OF EVERY OFFICE THAT IS PARTY TO THIS AGREEMENT]

- The Program will provide the Conduct Office with a list of all the students enrolled in the Program at the beginning of each semester.
Note: Consider whether the proactive sharing of information with the Conduct Office aligns with your program's philosophy and policies on student privacy and support.
- The Program and the Conduct Office will identify opportunities to support each other's work by having appropriate representation on relevant committees and workgroups.
- The Program will provide annual and on-demand training to the Conduct Office on disability-specific support and awareness related to the conduct process.
- The Conduct Office will include people with disabilities, specifically intellectual disability, as a demographic option on campus climate surveys on sexual assault.
- The Conduct Office and the Program will work together to develop crisis policies and procedures for students reporting sexual assault and will ensure that these services are accessible to all students. This includes resources and programming for sexual assault survivors.
- The Conduct Office will ensure that sexual assault first responders and support providers have access to emergency interpreter services or other required communication methods.
- The Conduct Office will notify the Program point-of-contact listed above of any conduct violations, required training, or reports made by students enrolled in the Program.

Note: Consider whether this approach aligns with information sharing practices and policies at your university and program.

- The Program will provide the Conduct Office with any additional training materials that are used to supplement the mandatory training offered through the Conduct Office.
- The Conduct Office will include a statement regarding disability-related accommodations available to students with disabilities during the reporting and disciplinary process, such as auxiliary communication aids or interpreters. The Office will also provide information on how to request those accommodations. This information will also be visible on the Conduct Office's website.
- The Conduct Office will allow for individualized accommodations for students with intellectual disability. The Conduct Office will work in collaboration with the Program to evaluate and alter accommodations as needed, throughout the conduct process.
- Students enrolled in the Program will adhere to the Student Code of Conduct and will be held to the same standards as any other student on campus. However, the Conduct Office and the Program will provide support reflective of students' support needs as they file a report, navigate the conduct process, and/or receive relevant training related to campus safety and responsibility.

To ensure that both parties are supporting students appropriately, the Program will:

- » Provide the Conduct Office with appropriate accommodations that a student may require and access when they file a report, navigate the conduct process, and/or receive relevant training related to campus safety and responsibility.
- » Provide the Conduct Office with a Family Communication Plan for each student, detailing any FERPA waivers, communication preferences, and expectations of the students regarding sharing information with their family members.
- » Work with the Conduct Office to ensure that any policies, processes, and/or training are accessible to students enrolled in the Program. This includes creating plain language companions or versions of relevant documents.
- » Provide a staff member to accompany the student during official meetings.

**You'll want to consider whether students will have the option to decline your support/presence in meetings.*

We, the undersigned, agree to all the above noted provisions.

[Conduct Office point of contact]

Date

[Program point of contact]

Date

For more information and context, you are invited to review the following materials:

*Add your program website here

[National Council on Disability's Not on the Radar: Sexual Assault of College Students with Disabilities](#)



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